

Virendra Kumar Srivastava v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 22 December 2017 · Writ-C No. 62517 of 2017 · Writ-C No. 62517 of 2017 · **Petition disposed; petitioner left to avail Clause 6.14 instalments.**

HEADNOTE

A writ seeking permission to deposit a recovery-citation amount in instalments was disposed of without examining the citation. The Power Corporation having pointed to Clause 6.14 of the Electricity Supply Code, 2005, the Court left the consumer to invoke that instalment facility.

FACTUAL SUMMARY

Virendra Kumar Srivastava approached the Allahabad High Court by a writ petition after a recovery citation issued against him. The only submission at the hearing was that he be permitted to deposit the citation amount in instalments. Counsel for the Power Corporation told the Court that such a facility was available by invoking Clause 6.14 of the Electricity Supply Code, 2005. The petition was heard by Dilip Gupta and Jayant Banerji, JJ. on 22 December 2017.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for recovery-citation dues

HOLDING

Where a consumer seeks in writ to deposit a recovery-citation amount in instalments, the High Court will not grant that facility itself; the consumer may invoke Clause 6.14 of the Electricity Supply Code, 2005, and the petition is disposed of leaving that Code remedy open. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14

A writ seeking permission to deposit a recovery-citation amount in instalments was disposed of without examining the citation. The Power Corporation having pointed to Clause 6.14 of the Electricity Supply Code, 2005, the Court left the consumer to invoke that instalment facility. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION AND THE UNDERLYING DUES

The Court did not examine the citation or the billed amount; it only left Clause 6.14 open. ¶ 1